Muncie Policy Memo

Civic Meeting Report

Board Of Zoning Appeals - October 29th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=IuTvpnhyqL4
Publication Date	2026-10-29T23:46:22Z
Target Category	delaware_county

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Delaware-Muncie Metropolitan Board of Zoning Appeals: Meeting Summary

October 2026 Regular Monthly Meeting

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding Officer Leslie Matthew called the regular monthly meeting of the Delaware-Muncie Metropolitan Board of Zoning Appeals to order at 00:09:30.
- **Attendance:**
  - **Present:** Leslie Matthew (Presiding Officer), Delaney Fritch, John Hamilton, Steven Hines, Christy Knapp.
  - **Absent:** Matt Billington, Richard Ivy.
  - **Quorum:** Achieved (5 members present).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Kylie 00:09:46.

- **Approval of Minutes:** The September 2026 meeting minutes were approved with a 4-0 roll call vote (Fritch abstained) 00:11:10, following a correction regarding a board member's presence noted by Delaney Fritch 00:11:20.

Substantive Business & Board Action

- 00:16:49 **BZA 78-26: Appeal of Building Permit for 206 and 208 East Columbus Avenue**
  - **Sponsor / Presenter:** Dan Gibson, Attorney (representing appellants Dogtown LLC).
  - **Deliberation Summary:** Appellants challenge the building commissioner's issuance of a building permit for a four-unit multi-family residence in a Central Business (CB) zone without requiring developmental standards variances (such as setbacks, lot width, area, and parking). The city administration and engineer argued that the 2022 comprehensive rezoning of the corridor to Central Business was intentionally enacted to eliminate setbacks and foster high-density infill housing. The building commissioner defended the permit issuance in good faith based on this intent.
  - **Item-Specific Public Input:**
    - Rachel Robertson (Vice President, McKinley Neighborhood Association) spoke in favor of the appeal 00:14:15, asking that standard variance processes and rules be applied consistently.
    - Mayor Dan Ridenower and City Engineer Adam Leech spoke regarding city intent and history 00:43:37, 01:01:53.
    - Developer Kevin Eert (New Eert Development) spoke regarding project goals 01:05:08.
    - Stacy Stenson spoke in opposition to high-density changes 01:20:04.
  - **Action & Vote Disposition:** Following extensive discussion and board members noting a lack of time to review full ramifications with a 5-member board, a motion was made and seconded to continue the matter. **Passed 4-1 (Hamilton voted "no")** to continue BZA 78-26 to the November 19, 2026 meeting 01:32:52.
- 00:18:36 **BZA 79-26: Appeal of Building Permit for 701, 703, 705, and 707 North Mulberry Street**
  - **Sponsor / Presenter:** Dan Gibson, Attorney (representing appellants Crew Properties LLC and Hickory Elm LLC).
  - **Deliberation Summary:** A companion appeal challenging the issuance of a building permit for a 15-unit multi-family development in a Central Business zone. Issues included initial parcel separation, lot coverage, and front/side yard setbacks. Note: Parcels were officially combined on September 15th, after permit issuance and appeal filing.
  - **Item-Specific Public Input:** Incorporated into the joint discussion with BZA 78-26.

    - **Action & Vote Disposition: Passed 4-1 (Hamilton voted "no")** to continue BZA 79-26 to the November 19, 2026 meeting alongside BZA 78-26 01:32:52.
- 00:14:21 **BZA 80-26: Special Use for Yoga Studio at 8613 North Seneca Drive**
    - **Sponsor / Presenter:** Dana Lynn Thompson, Homeowner and Business Owner.
    - **Deliberation Summary:** Request for an in-home occupation special use to operate a yoga studio ("At Your Core Yoga") in a residential zone, hosting approximately 5 clients per session (1<U+2013>2 sessions per week). The Plan Commission issued a favorable unanimous recommendation (8-0).
    - **Item-Specific Public Input:** Travis W. spoke in favor of the request 01:38:28. No speakers in opposition.
    - **Action & Vote Disposition:** Approved with the condition that the special use variance is for the applicant only and does not transfer with the property. **Passed Unanimously (Voice / Roll Call: 4 yeses, 1 abstention by Knapp)** 01:40:41.
- 01:41:21 **BZA 81-26: Variance for Reduced Southside Setback at 1249 South County Road 394 East**
    - **Sponsor / Presenter:** Kathy Benise, Ashton Land Surveyors (representing the Hunter Family Irrevocable Grantor Trust).
    - **Deliberation Summary:** Request for a variance to allow a reduced southside setback (13.75 ft instead of standard) for an existing barn to facilitate the proper platting and division of a residential house from the agricultural parcel. Staff noted no issues with existing structures.
    - **Item-Specific Public Input:** None.
    - **Action & Vote Disposition: Passed Unanimously** via roll call vote (5-0) 01:44:59.
- 01:45:26 **BZA 82-26: Variance for Existing Barn Without Dwelling at 4917 North Wheeling Avenue**
    - **Sponsor / Presenter:** Eric Garrett, Property Owner.
    - **Deliberation Summary:** Request for a variance to allow an existing 24x36 barn without a primary dwelling in a residential zone. The previous home was demolished years prior, and the current owner purchased the property for personal storage use and sought a permit for electricity.
    - **Item-Specific Public Input:** None.
    - **Action & Vote Disposition:** Approved with the condition that the barn be for personal storage only and not for business use. **Passed Unanimously** via roll call vote (5-0) 01:50:31.

Open Public Comment / Citizen Forum

(Note: Opening procedural rules established that general public comment unrelated to specific agenda items was not permitted during this hearing 00:11:40. All public statements occurred during specific case public hearings detailed above.)

Administrative Updates & Adjournment

- **Staff / Board Announcements:**
  - Staff announced that the next regular meeting is scheduled a week early due to the Thanksgiving holiday: **November 19, 2026, at 6:00 PM** in the same meeting room 01:33:40.
  - The board reviewed and approved a modified 2027 meeting schedule consisting of 11 meetings with an early December session, adopted via voice vote 01:54:23.
- **Adjournment:** The meeting was concluded following the completion of agenda items.

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